

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 25, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Ms. Broyles. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Mayor Kaysen noted a clerical correction on the numbering of items contained on the first page of the meeting agenda. Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Allen and Dr. Rinne, agenda item #8 was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 11, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-2, County Agriculture, to AG, Agriculture, for Lot 1, Block 1; Lot 1, Block 2; and Lot 2, Block 2, Plains Industrial Park, and changing the zoning classification from A-2, County Agriculture, to HI, Heavy Industrial, for Lot 3, Block 2, Plains Industrial Park, Cheyenne, Wyoming (located south of I-80, west of Campstool Road). Reporting for Public Services Committee, Mr. Allen moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present.

RESOLUTION - Authorizing submission of a pre-application form to the State Loan and Investment Board for a loan through the State Revolving Fund on behalf of the Cheyenne Governing Body for the purpose of design and construction of a Wetland and Stormwater Quality Facility. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. Cindy Schneider, Grants Manager, advised the substitute is to amend the 5th Whereas paragraph, which states the term is for 20 years, however, she

advised SLIB recently requested this be amended to a 5 year term to coincide with the dedicated payment source (6th penny sales tax) which is anticipated to be collected within 5 years. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” -- all members of the governing body present. (#5481)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Diamond Estates, Fourth Filing, a replat of a portion of Tract 316, Sunnyside Addition, Seventh Filing, Cheyenne, Wyoming (located west of and adjacent to Pierce Avenue, north of Rock Springs Street). Motion (per Consent Agenda) carried. (#5482)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Plains Industrial Park, a replat of a portion of HR Ranch Road right-of-way within GDC Subdivision and portions of Section 6, T.13N., R.65W.; Section 1, T.13N., R.66W.; Section 31, T.14N., R.65W.; and Section 36, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of I-80, west of Campstool Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing an independent professional traffic safety planning study be conducted for the intersection of Pershing Boulevard and Duff Avenue in the City of Cheyenne, Wyoming -- referred to Finance Committee (sponsors -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Shanor, Ms. Williams).

[CA] Professional Services Agreement between the City of Cheyenne and Chicago Dog House, LLC for the provision of concession services at the Pioneer Park Concession and Restroom Facility (revenue to City). Motion (per Consent Agenda) carried. (#5971)

[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction at City-owned tennis facilities (revenue to City). Motion (per Consent Agenda) carried. (#5972)

[CA] Agreement between the City of Cheyenne and RBC Global Asset Management (U.S.) Inc. to provide Investment Advisory Services -- referred to Finance Committee.

Professional Services Agreement between the City of Cheyenne and Singletrack Trails, Inc. for North Cheyenne Community Park Singletrack Trail Design and Construction (Recreational Trails Program grant funds and donations) -- referred to Finance Committee. Mr. Brown advised in order to meet the proposed construction schedule time frame, the item was reviewed under other items for the agenda at the Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Brown moved to approve in an amount not to exceed \$42,790.00, seconded by Mr. Valdez. Jeff Wiggins, Parks and Recreation Dept., advised the agreement is follow-up for grant funding for the project through the Recreational Trails program, and also noted private donations that have been offered toward the project by Paul Frauendienst, Dan Gregg and Larry Sutherland. He stated in order to abide with the construction trail schedule, the item was brought up under other items for the agenda at Finance Committee. Motion carried. Voting “yes” -- all members of the governing body present. (#5973)

Use Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Warriors Professional Indoor Football Team, LLC, for the purpose of holding arena football games and related practices at the City of Cheyenne-owned Ice and Events Center (revenue to City) -- referred to Finance Committee. In order to meet proposed events and practice schedule time lines, Mr. Brown advised the item was reviewed under other items for the agenda at the Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. Todd Feezer, Assistant Parks and Recreation Director, advised the substitute amends the daily use fee charged for the facility in order to be consistent with other contracts for similar uses, and that the item was reviewed under other items for the agenda at the Finance Committee meeting in order to meet the facility use schedule by the Cheyenne Warriors. Motion to amend carried. Voting "yes" -- all members of the governing body present. Upon inquiry, Mr. Feezer provided information on the agreement provision pertaining to promotional activities involving pre-approval by Ice and Events Center staff. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present. (#5974)

[CA] Professional Services Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Youth Baseball League for the provision of concession services at the Dutcher Baseball Complex Concession and Restroom Facility -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Junior League Baseball for the provision of concession services at the Cheyenne Junior League Baseball Complex Concession and Restroom Facility -- referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne and Warren Federal Credit Union to permit limited use of the public right-of-way for the installation of fiber optics, and setting a fee (revenue to City) -- referred to Finance Committee.

[CA] Hunter Management Agreement between the City of Cheyenne, Public Works Department, and the State of Wyoming, Game and Fish Department, for the Lone Tree Hunter Management Area on the Belvoir Ranch (revenue to City) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Carey Junior High School (21st Century Community Learning Centers Cohort Five grant funds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5781, between the City of Cheyenne and Ayres Associates for the addition of strategic grant writing services and associated preliminary engineering design required by grants to enable securing of additional grant funding for the Cheyenne West Edge (Lower Capitol Basin) Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$263,620.00). (#5781)

Contract Modification No. 4 to Contract No. 5496, between the City of Cheyenne and Ayres Associates for additional testing services for the East Pershing Boulevard Reconstruction Project (Phase

IV) (2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds). Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to approve in an amount not to exceed \$19,360.00, seconded by Mr. Valdez. Upon inquiry, Mr. Brown advised of the results of the votes taken for recommendation at Finance Committee. Upon inquiry, Nathan Beauheim, Acting City Engineer, advised the modification specifically relates to the west corridor portion of the project that Reiman is constructing. He provided information regarding the need for the additional testing services for quality control relative to certain omissions discovered in the initial bid/contract provisions, noting the use of a sub-consultant should result in a net savings of approximately \$6,000.00 to the City. Motion carried. Voting "yes" -- all members of the governing body present. (#5496)

[CA] Contract Modification No. 1 to Contract No. 5922, between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Inc., Cheyenne, Wyoming, to increase the quantity of structural concrete retaining and wingwalls for the Cheyenne Greenway Walterscheid Underpass Project (1% Specific Purpose Sales and Use Tax, Miscellaneous Federal grants) -- referred to Finance Committee.

[CA] Consideration of Bid #R-20-13 for furnishing three new pickup trucks for the Public Works Department, Street & Alley Division (2007 - 2010, 2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Spradley Barr Motors, Inc., Cheyenne, WY, in an amount not to exceed \$104,690.00).

Consideration of Bid #M-9-13 for a Contract for the East Pershing Boulevard/19th Street/Converse Avenue Intersection Improvements Project between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, Wyoming (2007 - 2010 1% Sales Tax). Rich Bolkovatz, Reiman Corp., expressed concerns with awarding the bid to Simon Contractors, commenting on bid elements involving disclosure of sub-contractors; type of contractor trade license involved and work that can be done under the license type; landscaping and tree removal as well electrical and plumbing work involved and requirements of those who can provide the services; bid quantity discrepancies, and state preference law compliance. John Arambul, Simon Contractors, provided information on services that will be provided involving landscaping and tree removal, relative to a licensed arborist, and bidding of the project based upon wording in the bid specifications, and advised the company does have the necessary required licenses. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to accept the bid in an amount not to exceed \$4,503,141.55, seconded by Mr. Luna. Upon inquiry, Mr. Arambul reviewed work the company had recently provided involving a portion of west Pershing, which required tree removal and landscape work, and advised they sub it out if it is considered high risk, otherwise they do the work themselves. He stated that he did not feel he will need to hire a subcontractor for the landscaping and tree removal portion of this project. Upon inquiry, he reviewed how the company acquires information from proposed subcontractors or specialized service providers to assist with preparation of estimated costs to submit in a bid proposal. Discussion followed and included the following topics: Requirements for providing landscaping/tree removal, plumbing and electrical work; subcontractor requirements and lists and timing of submittal of same; work that can be provided under a Class A contractor license; type of work that will be done regarding landscaping/tree removal and electrical and plumbing areas; concern with potential change orders and wording of bid specification document; responsibility for materials testing; wording of the bid specification issued by the City and

suggestions for changes/clarifications to future bid documents involving work of this type relative to subcontractor list requirements; proof of contractor qualifications; enforcement of contractor self-performance areas, and liquidated damages. During discussion and upon inquiry, Mr. Arambul provided information in response to questions and Nathan Beauheim, Acting City Engineer, provided information on contractor materials testing requirements. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Cook, Dr. Rinne and Ms. Williams voting “no”. (#5975)

[CA] Consideration of Bid #M-11-13 for annual purchase of furnishing aggregate for the Street and Alley Division (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Knife River, Cheyenne, WY in the amount of \$4.70/ton).

[CA] Consideration of Bid #M-12-13 for annual purchase of hot mix, tack oil and cold mix for the Street and Alley Division (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Knife River, Cheyenne, WY in the amount of \$51.95/ton-hot mix; \$1.15/gal-tack oil; \$77.50/ton-cold mix.).

[CA] Consideration of Bid #R-24-13 for furnishing and installing playground systems for JL Ranch Park from Great Western Park and Playground, Wellsville, Utah, for the Parks and Recreation Department (Community Facility fees) -- referred to Finance Committee.

[CA] Authorization to purchase self-contained breathing apparatus equipment from Norco, Inc., single source vendor, through the Firefighter Accountability program (Federal Emergency Management Agency (FEMA) Accountability Grant and 2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried.

Announcement was made of a Public Hearing to be held Monday, April 8, 2013 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for Fiscal Year 2013-2014 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement.

Under other business:

Jan Nelson Schroll provided handouts (on file with City Clerk’s Office) regarding the City’s old pump house building located within the west edge storm drainage project. She expressed her belief that it is a dangerous building and a potential liability to the City, citing safety concerns due to the unstabilized condition of the building, broken glass, discarded tires and storage of certain items in an open environment. She spoke in favor of stabilizing and renovating the building in the future.

Tom Lindsey commented on lack of development of the “downtown hole” off of Lincolnway and stated action should be initiated to fill it in to help beautify the area. He suggested a multi-purpose building be built on the site. Mr. Lindsey also expressed his opinion that the roundabout (i.e. Pershing/19th/Converse project) was not necessary. Later, under other business, and upon request, Mayor Kaysen advised a resolution was adopted authorizing the mayor to negotiate with the adjacent property owner relative to the City-owned portion of the property commonly referred to as the “downtown hole” and that negotiations are on-going, and that fencing of the site has been stabilized.

Duane Wall read a statement of history he had compiled pertaining to damage he alleged occurred to his property in early 2000 due to drainage issues resulting from a housing subdivision development. He stated problems he has endured due to the drainage design and valley pan/gutter installed adjacent to his property, and noted his attendance at previous City Council meetings to address the matter. He reviewed his concerns with a local building contractor and City staff who were involved in the development project at the time; enforcement of City laws and codes; construction specifications, subdivision and zoning regulations in place at the time of construction vs. current Unified Development Code provisions; his prior requests for monetary relief, correction and remedy to the drainage problems he had raised, and submitted a packet of information (on file with City Clerk's office) to members of the governing body. He requested reimbursement for expenses he has incurred regarding the issues he presented.

Margaret Kelly raised concerns regarding parking issues in front of homes located along E. 25th Street between Central and Warren Ave. and asked whether special parking areas for residents only could be assigned. She advised there is a 2 hour limit on parking in the area since it is located within a historical district, but stated this is often abused by employees who work in the vicinity, those attending state legislative meetings during the session, and tourists/visitors to the community. Comments followed regarding communications with City staff on the matter and Mayor Kaysen advised he would follow up with staff.

Comment was made regarding concerns on receiving information from City departments.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:25 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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